

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 19-024

**Amendments to Title 6, Chapter 1, Article B of the Chickasaw Nation Code
(Child Support Guidelines)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, on June 21, 2002, the Chickasaw Nation enacted PR19-019 which established Child Support Guidelines for the Chickasaw Nation, and

WHEREAS, the Chickasaw Tribal Legislature desires to clarify the rights of parents regarding child support obligations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves of the following amendments to Title 6, Chapter 1, Article B of the Chickasaw Nation Code. Additions will be shown in red. All other Sections and Subsections of Title 6, Chapter 1, Article B will remain the same and are not affected by this resolution.

**CHAPTER 1
MARRIAGE**

**ARTICLE B
CHILD SUPPORT GUIDELINES**

SECTION 6-102.6

CHILD SUPPORT GUIDELINES.

E. The child support guidelines are as follows:

17. Material change in circumstances:

a. Child support orders may be modified upon a material change in circumstances.

b. Three years after the issuance of any child support order the Chickasaw Nation Child Support Enforcement Department of Youth and Family Services ("CSE") may file an action for modification of child support based upon

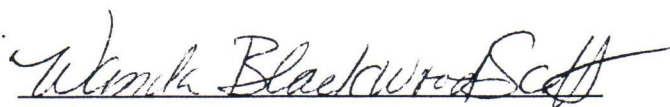
application of either party. Either party may file an action for modification of child support at any time after entry of decree upon showing a material change of circumstances.

SECTION 6-102.7

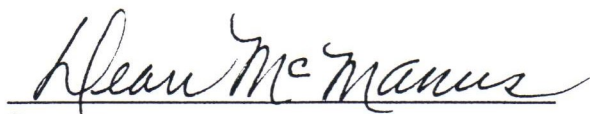
RESERVED DEPENDENT MINOR CHILD.

Any child shall be entitled to support by the parents until the child reaches eighteen (18) years of age. If a dependent child is regularly and continuously attending high school, said child shall be entitled to support by the parents through the age of twenty (20) years or until the child graduates or leaves high school, whichever occurs first. No hearing shall be required to extend such support through the age of twenty (20) if the child is regularly and continuously attending high school.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on August 16, 2002, by a vote of 13 ayes, 0 nays, 0 abstentions.

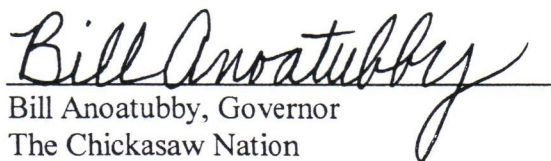


Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur:


Bill Anoatubby, Governor
The Chickasaw Nation

Date: AUG 19 2002

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 19-024

**Amendments to Title 6, Chapter 1, Article B of the Chickasaw Nation Code
(Child Support Guidelines)**

Explanation: The Chickasaw Tribal Legislature enacted Child Support Guidelines for the Chickasaw Nation on June 21, 2002. By this Resolution, the rights of parents regarding child support obligations will be clarified.

Requested By: Scott Colbert, Chairman
Court Development Ad Hoc Sub-committee

Presented By: Scott Colbert, Chairman
Court Development Ad Hoc Sub-committee